

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

AFFIDAVIT OF INDEBTEDNESS

**STATE OF FLORIDA
COUNTY OF MANATEE**

BEFORE ME, the undersigned authority, personally appeared CHERYL PEAKE, Park Manager of COLONIAL MANOR MHC HOLDINGS, LLC, who, being first duly sworn, deposes and says:

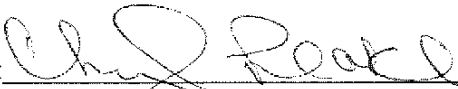
The following is a breakdown of the fees, costs and expenses incurred in the above referenced cause relating to 900 9th Avenue East, Lot #214, Palmetto, Florida, inclusive of the anticipated costs of judicial sale:

Past Due Rent including late fees including July 2023	\$2,260.50	
Water and Sewer Fees including late fees	\$1,213.25	
Attorney Fees	\$2,880.00	(see Exhibit C)
Costs	\$905.05	(see Exhibit B)
Total Indebtedness:	\$7,258.8	

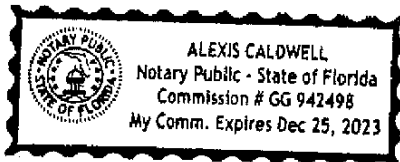


FURTHER AFFIANT SAYETH NOT.

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue West
Palmetto, Florida 34221

By: 
Cheryl Peake, Park Manager

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, this 12th day of July 2023, by CHERYL PEAKE, who is ☒ personally known to me or ☐ produced identification; type of identification produced: _____.



My Commission Expires: 12/25/23


Notary Public, State of Florida at Large

Alexis Caldwell
Printed Name of Notary Public

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

AFFIDAVIT OF TIME AND COSTS EXPENDED

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority duly authorized by the laws of the State of Florida to administer oaths, personally appeared **WILLIAM C. PRICE, IV, ESQUIRE**, of 522 Twelfth Street West, Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. WILLIAM C. PRICE, IV, attorney for the Plaintiff, states that this is a breakdown of the actual time expended and costs advanced in the pursuit of the Plaintiff's claim including the time anticipated to be expended at the hearing on Plaintiff's Hearing on Motion for Final Judgment and the Judicial Sale of the Mobile Home which is the subject of this cause of action and affides that the amount of time expended and the acts taken on behalf of the Plaintiff are as follows:

ATTORNEY'S FEES				
Date	Services Rendered	Hours	Rate	Amount
02/17/2023	Review of Arrest Report, Notice of Termination of Lease	.30	\$300.00	\$90.00
03/27/2023	Letter to State Attorney's Office to Notify them of Eviction, Preparation of Complaint, Research on Tenant and Drafting of Summons and Certificate of Mailing	1.5	\$300.00	\$450.00
05/01/2023	Preparation of Motion for Default and Default for Clerk signature- Motion for Default Denied	.2	\$300.00	\$60.00
07/03/2023	Notice of final hearing, Subpoena for Detective Diorio for trial, preparation for trial, proposed final judgment, question list for Cheryl and Detective in preparation for trial, notice of final hearing, memo to file for preparation for trial process, memoranda in support of motion	2.5	\$300.00	\$60.00
07/06/2023	Trial preparation, witness statement for client, draft of Proposed Final Judgment	1.0	\$300.00	\$300.00

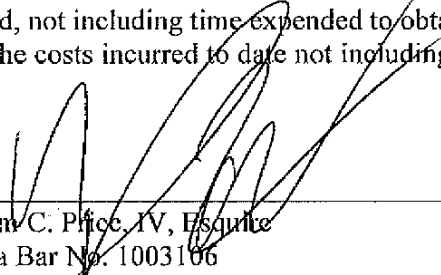


07/10/2023	Preparation of Motion for Final Judgment for Damages and Judicial Sale, Preparation of Affidavit of Indebtedness, Attorney Fees and Costs	2.0	\$300.00	\$600.00
07/14/2023	Attendance at Final Hearing and Preparation of Final Judgment	.5	\$300.00	\$150.00
07/20/2023	Preparation of Notice of Sale, Publication, Certificate of No Disbursement. Certificate of Sale, Certificate of Title, Costs of Publication (Business Review)	.6	\$300.00	\$180.00
08/03/2023	Attendance at Judicial Sale and trip to tag agency for title, preparation of Power of Attorney and Application for Title	1.0	\$300.00	\$300.00
		9.6		\$2,880.00

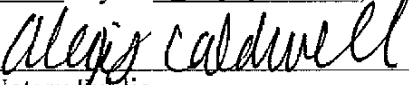
DATE	COSTS ADVANCED	AMOUNT
01/07/2021	Florida ePortal: Filing Fee Complaint Seeking Eviction, etc., and Summonses issued James B. Fox and Any Unknown Tenant(s)	\$445.05
01/20/2021	George Hooper, Process Server: Service of Summons and Complaint on Gregory Burkett and Any Unknown Tenants	\$150.00
02/11/2021	Finley Investigative Network Subpoena Service of Process	\$90.00
03/08/2023	Cost of Judicial Sale (To Clerk)	\$70.00
03/08/2023	Publication of Notice of Judicial Sale	\$150.00
03/08/2023	Costs of Title Transfer	TBD
	TOTAL	\$905.05

2. The total sum of attorney time expended, not including time expended to obtain attorney's fees to date is \$2,880.00 (9.6 hours at \$300.00/hour). The costs incurred to date not including expenses of collection of the final judgment are \$905.05.

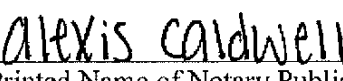
FURTHER AFFIANT SAYETH NOT.

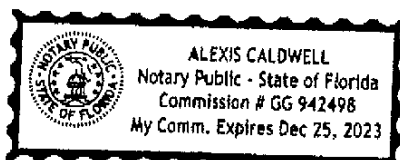

 William C. Price, IV, Esquire
 Florida Bar No. 1003106
 WILLIAM C. PRICE, III, P.A.
 522 Twelfth Street West
 Bradenton, Florida 34205
 Telephone: (941) 747-8001
 Fax: (941) 747-3730
pleadings@wepri celaw.com
 Attorney for the Plaintiff

SWORN TO AND SUBSCRIBED this 12th day of JULY, 2023.


 Notary Public

My Commission Expires:


 Printed Name of Notary Public



IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-2098

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

AFFIDAVIT OF ATTORNEY'S FEES

STATE OF FLORIDA
COUNTY OF MANATEE

BEFORE ME, the undersigned authority, personally appeared **E. BLAKE MELHUISE**,
ESQUIRE, of Bradenton, Florida, who being first duly sworn, deposes and states as follows:

1. I have been a practicing attorney in Manatee County, Florida, since 1989 and, as such, I am familiar with the fees charged by attorneys for legal proceedings in this Court and in Manatee County, Florida.

2. I have no interest whatsoever in this cause, and am not associated in the practice of law with William C. Price, III, P.A., although we share office space.

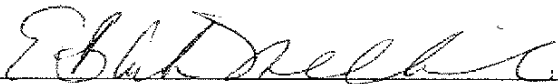
3. I have had occasion to examine the file in this cause, and I am familiar with same.

4. That on the basis of the examination of the file, the difficulty of the matter and the time expected to perform legal services, and my knowledge of the fees customarily charged, it is my opinion that \$300.00 per hour is a reasonable hourly fee for the services rendered, that seven (9.6) hours is a reasonable amount of time to perform the services required of attorney in the above styled matter and that the sum of \$2,880.00 is a reasonable attorney's fee for prosecution of the above styled cause.

FURTHER AFFIANT SAYETH NOT.

Page 1 of 2

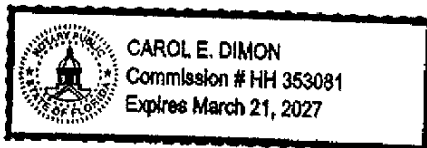



E. BLAKE MELHUIH, ESQUIRE
Florida Bar No. 0825972
E. BLAKE MELHUIH, P.A.

SWORN TO AND SUBSCRIBED before me, by means of ☒ physical presence or ☐ online notarization, by E. BLAKE MELHUIH, ESQUIRE, ☒ who is personally known, on this 12th day of July, 2023.


Notary Public, State of Florida at Large

My Commission Expires:



CAROL E. DIMON
Printed Name of Notary Public